

undue advantage of their adversary's industry and efforts.” (Code Civ. Proc., § 2018.020 (b).) ““Discovery was hardly intended to enable a learned profession to perform its functions ... on wits borrowed from the adversary.”” (*Spectra–Physics, Inc.*, *supra*, 198 Cal.App.3d at p. 1494, quoting *Hickman v. Taylor* (1947) 329 U.S. 495, 516 (conc. opn. of Jackson, J.).)

To effectuate these policy concerns, California applies a three-prong test in considering the propriety of attorney depositions. First, does the proponent have other practicable means to obtain the information? Second, is the information crucial to the preparation of the case? Third, is the information subject to a privilege? (*Spectra–Physics, Inc.*, *supra*, 198 Cal.App.3d at pp. 1494-96; see also *Estate of Ruchti* (1993) 12 Cal.App.4th 1593, 1601, [affirming protective order against deposition of opposing counsel].)

Carehouse Convalescent Hospital v. Superior Court (2006) 143 Cal.App.4th 1558, 1562-63.

Plaintiff has not met the standard in *Carehouse Convalescent Hospital*. Moreover, plaintiff has not shown how she can compel the deposition of a non-party, absent a subpoena, pursuant to Code Civ. Proc., § 2025.450.

Based on the foregoing, the motion to compel the deposition of defendant’s attorney Robert Gonzalez is denied. The motion to recuse defense counsel under California State Bar Rule 3.7 is denied. The request for sanctions is denied.

9. S-CV-0052777 Reed, Nancy v. Colaw, Ryan

Review Hearing

The court scheduled this hearing for review of a first amended cross-complaint filed under seal pursuant to Insurance Code section 1871.7(e)(2). As a review of the court file reveals no first-amended cross-complaint has been lodged with the court, the review hearing is dropped from calendar.

10. S-CV-0053149 Grussenmeyer, Bonnie J v. Alley, Laura C

This tentative ruling is issued by the Honorable Michael A. Jacques. If oral argument is timely requested, it will be heard on **May 21, 2026 at 8:30 a.m. in Department 40** by Commissioner Jacques.

Motion to Seal

Petitioner moves to seal pages 31 through 184 of the notice of errata filed on November 24, 2025 pursuant to California Rules of Court, rules 2.550 and 2.551. No opposition has

been filed and it appears respondent is in agreement with the motion, in light of the stipulation submitted as Exhibit 2 to the declaration of counsel Alexis Ortega.

Court records are presumed to be open to the public unless confidentiality is required by law. (Cal. Rules of Court, rule 2.550, subd. (c).) This presumption, however, is not absolute. (*McNair v. Natl. Collegiate Athletic Assn.* (2015) 234 Cal.App.4th 25, 31.) The court may order court records sealed pursuant to California Rules of Court rules 2.550 and 2.551, if it makes the following findings: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550, subd. (d).) Here, the court finds based on the moving papers and supporting documents that there exists an overriding interest that overcomes the right of public access to the records to be sealed. The court finds that a substantial probability exists that the overriding interest will be prejudiced if the records are not sealed. The court further finds that the proposed sealing of information is narrowly tailored, and that no less restrictive means to achieve the identified overriding interest exists. (Cal. Rules of Court, rule 2.550(d).)

The court orders sealed pages 31 through 184 of the notice of errata filed on November 24, 2025.

Copies of these documents will be sealed and maintained in the court's electronic file and shall be available only to the court and court personnel. Any person may make a motion to unseal the documents in accordance with California Rules of Court, rule 2.551(h).

11. S-CV-0054129 Faqurzadeh, Nabila v. CSAA Ins. Exchange

Motion to Compel Uninsured Motorist Arbitration

CSAA Insurance Exchange moves this court for an order compelling claimant Nabila Faqurzadeh to binding uninsured motorist arbitration with Retired Judge David Brown through JAMS Alternative Dispute Resolution. Claimant has not filed a response or yet appeared in this case.

Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration "if [the court] determines that an agreement to arbitrate the controversy exists." (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59.) "A party seeking to compel arbitration has the burden of proving the existence of a valid agreement to arbitrate. Once that burden is satisfied, the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition." (*Sparks v. Vista Del Mar Child & Family Services* (2012) 207 Cal.App.4th 1511, 1518, abrogated by *Harris v. TAP Worldwide, LLC* (2016) 148 Cal.App.4th 373 on other grounds.)